

Amendment No. 1 to HB1429

Crawford
Signature of Sponsor

AMEND Senate Bill No. 1454

House Bill No. 1429*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Chapter 81 of the Private Acts of 2014, and any other acts amendatory thereto, is amended by designating the existing language of Section 2.02 as subsection (a) and adding the following as a new subsection (b):

(b) To avoid an actual conflict of interest, the appearance of a conflict of interest, or practice of favoring, providing benefits to, or giving any preference to a relative, no individual shall be considered for any elected position if he or she is an immediate relative to another elected official. The restrictions on elected positions established in this subsection (b) shall only apply to electable positions for offices within the City of New Johnsonville. An immediate relative of a state, county, city, municipal, federal, or other official is not prohibited from being considered for an elected position within the City of New Johnsonville under this subsection (b). For purposes of this subsection (b), "immediate relative" shall include a spouse, parent, child, sibling, stepchild, stepparent, grandparent, grandchild, mother-in-law, father-in-law, sister-in-law and/or brother-in-law.

SECTION 2. Nothing in this act shall be construed to remove any incumbent from office or abridge the term of any incumbent prior to the end of the term for which such elected official was selected, as prescribed in Article XI, Section 9 of the Constitution of the State of Tennessee.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of New Johnsonville. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.